

Sou. Monika W/O Tushar Jaiswal vs Shri Tushar S/O Anil Jaiswal on 15 October, 2019

Author: M.G. Giratkar

Bench: M. G. Giratkar

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH AT NAGPUR

MISC. APPLICATION (MCA) NO. 1035 OF 2019
(Sou. Monika w/o Tushar Jaiswal
Vs.
Shri Tushar s/o Anil Jaiswal)

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Office Notes, Office Memoranda of Coram,
appearances, Court's orders of directions
and Registrar's orders
- - - - -

Shri N.M. Jibhkate, Advocate for

CORAM : M.G. GIRATKAR, J.

DATED : 15th October, 2019 Heard learned Advocate Shri N.M. Jibhkate for the applicant.

The applicant has filed Civil Suit under Sections 18 and 20 of the Hindu Adoption & Maintenance Act, 1956 for grant of maintenance. She has also filed another proceeding in the Court of Civil Judge Senior Division, Pusad for injunction.

As per the submission of learned counsel Shri N.M. Jibhkate, the non-applicant is a permanent residence of Wani. But, only to harass the applicant, he has filed proceeding under Section 13 (1)(ia)(ib) of the Hindu Marriage Act, 1955 at Family Court, Nagpur.

Looking to the submissions, issue notice to the non-applicant, returnable after four weeks.

2 MCA.1035-19.odt The proceedings in H.M.P. No.489/2019 is hereby stayed until further orders.

JUDGE SD. Bhimte